Text 1

失业救济改革背后的预设

第 1 段

In order to “change lives for the better” and reduce “dependency”, George Osborne, Chancellor of the Exchequer, introduced the “upfront work search” scheme. Only if the jobless arrive at the jobcentre with a CV, register for online job search, and start looking for work will they be eligible for benefit — and then they should report weekly rather than fortnightly. What could be more reasonable?

为了‘让生活变得更好’并减少‘依赖’，英国财政大臣乔治·奥斯本推出了‘预先求职’方案。失业者只有带着简历来到就业中心，注册网上求职，并开始寻找工作，才有资格领取福利；此后，他们还应该每周报到，而不是每两周报到。还有什么比这更合理呢?

第 2 段

More apparent reasonableness followed. There will now be a seven-day wait for the jobseeker’s allowance. “Those first few days should be spent looking for work, not looking to sign on,” he claimed. “We’re doing these things because we know they help people stay off benefits and help those on benefits get into work faster.”

随后，又有更多表面上合理的措施出台。现在，求职者津贴将有七天的等待期。他声称：‘最初那几天应该用来找工作，而不是忙着登记领取救济。我们做这些事，是因为我们知道，它们有助于人们不再依靠福利，也能帮助领取福利的人更快找到工作。’

第 3 段

Help? Really? On first hearing, this was the socially concerned chancellor, trying to change lives for the better, complete with “reforms” to an obviously indulgent system that demands too little effort from the newly unemployed to find work, and subsidises laziness. What motivated him, we were to understand, was his zeal for “fundamental fairness” — protecting the taxpayer, controlling spending and ensuring that only the most deserving claimants received their benefits.

帮助？真的吗？乍一听，这位财政大臣似乎关心社会、努力让生活变得更好，还带来一整套‘改革’，针对的是一个显然过于纵容的制度：它对新近失业者找工作的努力要求太低，还补贴懒惰。我们被引导去理解，驱使他这样做的，是他对‘根本公平’的热忱 —— 保护纳税人、控制开支，并确保只有最值得获得救济的申请者才能领取福利。

第 4 段

Losing a job is hurting: you don't skip down to the jobcentre with a song in your heart, delighted at the prospect of doubling your income from the generous state. It is financially terrifying, psychologically embarrassing and you know that support is minimal and extraordinarily hard to get. You are now not wanted; you are now excluded from the work environment that offers purpose and structure in your life. Worse, the crucial income to feed yourself and your family and pay the bills has disappeared. Ask anyone newly unemployed what they want and the answer is always: a job.

失业是痛苦的：你不会心中唱着歌、蹦蹦跳跳地走到就业中心，为能从慷慨的国家那里获得使收入翻倍的钱而欣喜。失业在经济上令人恐惧，在心理上让人难堪；而且你知道，能够得到的支持很少，并且极难获得。你如今不被需要，被排除在能为生活提供目标和秩序的工作环境之外。更糟的是，那份供养你和家人、支付账单的关键收入已经消失。问任何一个刚失业的人想要什么，答案总是：一份工作。

第 5 段

But in Osborneland, your first instinct is to fall into dependency - permanent dependency if you can get it — supported by a state only too ready to indulge your falsehood. It is as though 20 years of ever-tougher reforms of the job search and benefit administration system never happened. The principle of British welfare is no longer that you can insure yourself against the risk of unemployment and receive unconditional payments if the disaster happens. Even the very phrase "jobseeker's allowance" is about redefining the unemployed as a "jobseeker" who had no fundamental right to a benefit he or she has earned through making national insurance contributions. Instead, the claimant receives a time-limited "allowance," conditional on actively seeking a job; no entitlement and no insurance, at £71.70 a week, one of the least generous in the EU.

但是，在 ' 奥斯本的世界 ' 里，你的第一本能就是陷入依赖 —— 如果可能，最好是永久依赖 —— 由一个过分愿意纵容你撒谎的国家来供养。仿佛过去二十年来对求职和福利管理制度不断趋严的改革从未发生过。英国福利制度的原则已不再是：你可以为失业风险投保，而当灾难发生时，便无条件领取款项。就连 ' 求职者津贴 ' 这一说法本身，也在把失业者重新定义为 ' 求职者 '：他们对那份原本通过缴纳国民保险费而获得的福利，不再拥有基本权利。相反，申请者得到的是一种以积极求职为条件、期限有限的 ' 津贴 '；没有应得的权利，也没有保险保障，每周只有 71.70 英镑，是欧盟中最不慷慨的水平之一。

阅读分析

作者先复述改革看似合理的说辞，再以连续反问转向批评，通过失业者的真实处境反驳 ' 失业者天生想依赖福利 ' 的预设，并指出福利权利逐渐被附条件津贴替代。

直译提示

第 1 段 Only if ... will they ... 是条件状语前置引起的倒装；第 3 段 we were to understand 标示被要求接受的官方解释，第 5 段 Osborneland 带讽刺意味。

Text 2

美国法律服务为何昂贵

第 1 段

All around the world, lawyers generate more hostility than the members of any other profession — with the possible exception of journalism. But there are few places where clients have more grounds for complaint than America.

在世界各地，律师引发的敌意都比任何其他职业的成员更多，可能只有新闻业例外。但很少有地方像美国这样，让客户拥有如此充分的抱怨理由。

第 2 段

During the decade before the economic crisis, spending on legal services in America grew twice as fast as inflation. The best lawyers made skyscrapers-full of money, tempting ever more students to pile into law schools. But most law graduates never get a big-firm job. Many of them instead become the kind of nuisance-lawsuit filer that makes the tort system a costly nightmare.

在经济危机前的十年，美国法律服务支出的增长速度是通货膨胀速度的两倍。最优秀的律师赚到了多得能装满摩天大楼的钱，这诱使越来越多的学生涌入法学院。但是，大多数法学院毕业生从未获得大型律师事务所的职位。相反，其中许多人变成了那种靠提起滋扰性诉讼谋生的人，让侵权法律制度成为一个代价高昂的噩梦。

第 3 段

There are many reasons for this. One is the excessive costs of a legal education. There is just one path for a lawyer in most American states: a four-year undergraduate degree in some unrelated subject, then a three-year law degree at one of 200 law schools authorized by the American Bar Association and an expensive preparation for the bar exam. This leaves today's average law-school graduate with $100,000 of debt on top of undergraduate debts. Law-school debt means that they have to work fearsomely hard.

造成这种现象的原因很多，其中之一是法律教育成本过高。在美国多数州，成为律师只有一条路径：先用四年时间取得某个与法律无关学科的本科学位，再到美国律师协会认可的二百所法学院之一，花三年取得法律学位，还要进行昂贵的律师资格考试备考。这使得如今普通法学院毕业生除了本科债务之外，还背负十万美元的债务。法学院债务意味着他们必须极其拼命地工作。

第 4 段

Reforming the system would help both lawyers and their customers. Sensible ideas have been around for a long time, but the state-level bodies that govern the profession have been too conservative to implement them. One idea is to allow people to study law as an undergraduate degree. Another is to let students sit for the bar after only two years of law school. If the bar exam is truly a stern enough test for a would-be lawyer, those who can sit it earlier should be allowed to do so. Students who do not need the extra training could cut their debt mountain by a third.

改革这一制度将同时帮助律师和他们的客户。合理的主张早已存在，但管理这个行业的州级机构过于保守，一直不肯实施。一种主张是允许人们在本科阶段学习法律。另一种是让学生在法学院学习仅两年后，就参加律师资格考试。如果这一考试对准备成为律师的人来说确实已经足够严格，那么那些能更早应试的人就应该获准这样做。不需要额外训练的学生，可以把自己如山的债务减少三分之一。

第 5 段

The other reason why costs are so high is the restrictive guild-like ownership structure of the business. Except in the District of Columbia, non-lawyers may not own any share of a law firm. This keeps fees high and innovation slow. There is pressure for change from within the profession, but opponents of change among the regulators insist that keeping outsiders out of a law firm isolates lawyers from the pressure to make money rather than serve clients ethically.

费用如此之高的另一个原因，是这个行业限制严格、类似行会的所有权结构。除哥伦比亚特区外，非律师不得拥有律师事务所的任何股份。这使收费居高不下、创新步履缓慢。行业内部存在改革压力，但是监管者中反对变革的人坚持认为，把外人挡在律师事务所之外，能使律师免受赚钱压力影响，从而按职业道德服务客户。

第 6 段

In fact, allowing non-lawyers to own shares in law firms would reduce costs and improve services to customers, by encouraging law firms to use technology and to employ professional managers to focus on improving firms' efficiency. After all, other countries, such as Australia and Britain, have started liberalizing their legal professions. America should follow.

事实上，允许非律师持有律师事务所股份，将通过鼓励事务所使用技术、聘用专业管理者专注于提高效率，降低成本并改善客户服务。毕竟，澳大利亚和英国等其他国家已开始放宽对法律行业的限制。美国应当跟进。

阅读分析

文章从客户抱怨和法律服务费用上升谈起，分析两项制度性原因：培养路径成本过高、事务所所有权限制过严；对应提出教育路径改革与放宽非律师持股。

直译提示

第 4 段 cut ... by a third 是 ‘ 减少三分之一 ’，不是 ‘ 减至三分之一 ’；第 5 段赚钱压力是反对改革者的理由，末段才给出作者支持开放的结论。

Text 3

科学大奖的争议与价值

第 1 段

The US$3-million Fundamental Physics Prize is indeed an interesting experiment, as Alexander Polyakov said when he accepted this year's award in March. And it is far from the only one of its type. As a News Feature article in Nature discusses, a string of lucrative awards for researchers have joined the Nobel Prizes in recent years. Many, like the Fundamental Physics Prize, are funded from the telephone-number-sized bank accounts of Internet entrepreneurs. These benefactors have succeeded in their chosen fields, they say, and they want to use their wealth to draw attention to those who have succeeded in science.

正如亚历山大·波利亚科夫在三月领取当年奖项时所说，奖金三百万美元的基础物理学奖，确实是一项有趣的实验。而它远非同类奖项中唯一的一项。正如《自然》的一篇新闻特写所讨论的，近年来，一系列面向研究者的高额奖项加入了诺贝尔奖的行列。许多奖项和基础物理学奖一样，资金来自互联网企业家余额长得像电话号码的银行账户。这些捐助者说，自己已经在所选择的领域取得成功，因此希望用自己的财富，让那些在科学上取得成功的人受到关注。

第 2 段

What's not to like? Quite a lot, according to a handful of scientists quoted in the News Feature. You cannot buy class, as the old saying goes, and these upstart entrepreneurs cannot buy their prizes the prestige of the Nobels. The new awards are an exercise in self-promotion for those behind them, say scientists. They could distort the achievement-based system of peer-review-led research. They could cement the status quo of peer-reviewed research. They do not fund peer-reviewed research. They perpetuate the myth of the lone genius.

这有什么不值得喜欢的呢？按照新闻特写所引用的少数科学家的说法，值得反感的地方相当多。正如老话所说，格调是买不来的；这些新贵企业家也无法为自己的奖项买到诺贝尔奖那样的声望。科学家们说，这些新奖项是幕后设奖者进行自我宣传的举动。它们可能扭曲由同行评审主导、以成就为基础的研究体系；可能使同行评审研究的现状更加固化；并不为经过同行评审的研究提供资助；还会延续孤独天才的神话。

第 3 段

The goals of the prize-givers seem as scattered as the criticism. Some want to shock, others to draw people into science, or to better reward those who have made their careers in research.

设奖者的目标似乎与批评意见一样分散。有些人想制造轰动，有些人想吸引人们投身科学，另一些人则想更好地奖励那些以研究为职业的人。

第 4 段

As Nature has pointed out before, there are some legitimate concerns about how science prizes — both new and old — are distributed. The Breakthrough Prize in Life Sciences, launched this year, takes an unrepresentative view of what the life sciences include. But the Nobel Foundation's limit of three recipients per prize, each of whom must still be living, has long been outgrown by the collaborative nature of modern research — as will be demonstrated by the inevitable row over who is ignored when it comes to acknowledging the discovery of the Higgs boson. The Nobels were, of course, themselves set up by a very rich individual who had decided what he wanted to do with his own money. Time, rather than intention, has given them legitimacy.

正如《自然》此前指出的，人们对于科学奖项 —— 无论新旧 —— 如何分配，确有一些合理的担忧。当年设立的生命科学突破奖，对生命科学所涵盖范围的理解并不具有充分代表性。但是，诺贝尔基金会规定每个奖项最多只能有三名获奖者，而且每个人都必须仍然在世；现代研究的协作性质早已超出了这一规定所能容纳的范围。对于希格斯玻色子发现的贡献进行表彰时，谁被遗漏这一问题必然引发争论，这就将证明上述一点。当然，诺贝尔奖本身也是由一位非常富有的人设立的，他决定了自己想如何使用自己的钱。赋予这些奖项正当性的，是时间，而不是意图。

第 5 段

As much as some scientists may complain about the new awards, two things seem clear. First, most researchers would accept such a prize if they were offered one. Second, it is surely a good thing that the money and attention come to science rather than go elsewhere. It is fair to criticize and question the mechanism — that is the culture of research, after all — but it is the prize-givers' money to do with as they please. It is wise to take such gifts with gratitude and grace.

尽管一些科学家可能对新奖项多有抱怨，但有两点似乎很清楚。第一，如果被授予这样的奖项，大多数研究者都会接受。第二，金钱和关注流向科学，而不是流向别处，这当然是件好事。批评和质疑这一机制是合理的 —— 毕竟，这就是研究文化 —— 但是，设奖者有权按照自己的意愿支配自己的钱。以感激和得体的态度接受这些馈赠，是明智的。

阅读分析

文章列举对科学大奖的批评，也承认奖项制度存在真实问题，但最终主张以开放、感激而得体的态度看待流入科学的资金与关注，并继续对机制提出合理质疑。

直译提示

第 4 段 Time, rather than intention, has given them legitimacy 对照的是长期积累与设立初衷；末段 As much as ... may ... 在此相当于 ' 尽管……'。

Text 4

人文教育报告遗漏了什么

第 1 段

"The Heart of the Matter," the just-released report by the American Academy of Arts and Sciences (AAAS), deserves praise for affirming the importance of the humanities and social sciences to the prosperity and security of liberal democracy in America. Regrettably, however, the report's failure to address the true nature of the crisis facing liberal education may cause more harm than good.

美国艺术与科学院（AAAS）刚刚发布的报告《问题的核心》，肯定了人文学科和社会科学对于美国自由民主制度的繁荣与安全的重要性，因此值得赞扬。然而，令人遗憾的是，报告没有回应博雅教育所面临危机的真实性质，这可能弊大于利。

第 2 段

In 2010, leading congressional Democrats and Republicans sent letters to the AAAS asking that it identify actions that could be taken by "federal, state and local governments, universities, foundations, educators, individual benefactors and others" to "maintain national excellence in humanities and social scientific scholarship and education." In response, the American Academy formed the Commission on the Humanities and Social Sciences. Among the commission's 51 members are top-tier-university presidents, scholars, lawyers, judges, and business executives, as well as prominent figures from diplomacy, filmmaking, music and journalism.

2010 年，国会中民主党和共和党的主要人士致信 AAAS，要求它找出 ' 联邦、州和地方政府、大学、基金会、教育工作者、个人捐助者以及其他人 ' 能够采取哪些行动，以 ' 保持国家在人文学科和社会科学的学术研究与教育方面的卓越地位 '。作为回应，美国艺术与科学院成立了人文学科与社会科学委员会。委员会的 51 名成员包括顶尖大学校长、学者、律师、法官、企业高管，以及外交、电影制作、音乐和新闻领域的杰出人物。

第 3 段

The goals identified in the report are generally admirable. Because representative government presupposes an informed citizenry, the report supports full literacy; stresses the study of history and government, particularly American history and American government; and encourages the use of new digital technologies. To encourage innovation and competition, the report calls for increased investment in research, the crafting of coherent curricula that improve students' ability to solve problems and communicate effectively in the 21st century, increased funding for teachers and the encouragement of scholars to bring their learning to bear on the great challenges of the day. The report also advocates greater study of foreign languages, international affairs and the expansion of study abroad programs.

报告确定的目标总体上值得赞赏。由于代议制政府以公民具备充分知识为前提，报告支持全民读写教育，强调历史和政府制度研究，特别是美国历史和美国政府制度，并鼓励使用新的数字技术。为了鼓励创新与竞争，报告呼吁增加研究投资，设计连贯的课程体系，以提高学生在 21 世纪解决问题和有效交流的能力，增加教师经费，并鼓励学者将自己的学识用于应对当今的重大挑战。报告还倡导加强外语和国际事务研究，并扩大海外学习项目。

第 4 段

Unfortunately, despite 2½ years in the making, “The Heart of the Matter” never gets to the heart of the matter: the illiberal nature of liberal education at our leading colleges and universities. The commission ignores that for several decades America’s colleges and universities have produced graduates who don’t know the content and character of liberal education and are thus deprived of its benefits. Sadly, the spirit of inquiry once at home on campus has been replaced by the use of the humanities and social sciences as vehicles for publicizing “progressive,” or left-liberal propaganda.

不幸的是，尽管历时两年半完成，《问题的核心》从未触及问题的核心：在我们顶尖学院和大学中，博雅教育所具有的不开明性质。委员会忽视了这样一个事实：几十年来，美国高校培养出的毕业生不了解博雅教育的内容和特征，因此未能享受到它的益处。令人遗憾的是，曾经在校园里扎根的探究精神，已经被另一种做法取代：把人文学科和社会科学当作宣传‘进步派’或左翼自由派观点的工具。

第 5 段

Today, professors routinely treat the progressive interpretation of history and progressive public policy as the proper subject of study while portraying conservative or classical liberal ideas — such as free markets and self-reliance — as falling outside the boundaries of routine, and sometimes legitimate, intellectual investigation.

如今，教授们经常把进步派的历史解释和进步派公共政策当作适当的研究对象，却把保守主义或古典自由主义观念 —— 例如自由市场与自力更生 —— 描述成超出了常规思想探究的范围，有时甚至超出了正当思想探究的范围。

第 6 段

The AAAS displays great enthusiasm for liberal education. Yet its report may well set back reform by obscuring the depth and breadth of the challenge that Congress asked it to illuminate.

AAAS 对博雅教育表现出极大的热情。然而，它的报告却可能因掩盖挑战的深度和广度而阻碍改革，而国会原本要求它阐明的，恰恰就是这一挑战。

阅读分析

作者先肯定报告的目标，再批评它没有正视校园思想探究受限的问题。文中的立场是作者的评论，不应与报告自身的主张混淆；批评焦点在报告遗漏的核心，而非否定人文教育的价值。

直译提示

liberal education 在本文指博雅教育；illiberal 与之形成反讽，而 left-liberal、classical liberal 分别指政治思想倾向。末句 obscure 与 illuminate 对照‘掩盖’和‘阐明’。